CONTRACT FOR SERVICES

THIS AGREEMENT (the "Agreement")**,** made and entered into this _day of August 2026 ("Effective Date") by and between Weld County School District Six of 1025 9th Avenue, Greeley, CO 80631, (the "DISTRICT") AND, _ with a mailing address of _ ("CONTRACTOR").

(CONTRACTOR) TAXPAYER ID NUMBER IS: xxx-xx-

Weld County School District 6 Project Number:

1. **SCOPE OF SERVICES**: CONTRACTOR will __ Details of the services agreed upon are described in Exhibit A. CONTRACTOR agrees to diligently and professionally perform all the services described herein in a manner satisfactory to the DISTRICT. It is also understood and agreed that CONTRACTOR shall not, in performing services hereunder, undertake any action or activity prohibited by the terms of any lease, permit, license or other agreement in effect during the term hereof between CONTRACTOR and the DISTRICT for the use and occupancy by CONTRACTOR of any DISTRICT facilities or space.

2. **COMPENSATION**: Subject to the maximum contract liability and all other provisions of this Agreement, the DISTRICT agrees to pay, and CONTRACTOR agrees to receive compensation not to exceed ____ (the "Contract Price") during the term hereof, in accordance with the terms set forth herein. CONTRACTOR must invoice the DISTRICT to effect payment. The DISTRICT reserves the right to require such additional documentation including monthly activity reports detailing CONTRACTOR'S activities and services rendered as the DISTRICT deems appropriate to support payments to CONTRACTOR. Unless otherwise expressly stated in this Agreement, all necessary labor, licenses, materials, supplies, equipment, reimbursables, and other items necessary to complete the services shall be part of and not in addition to the Contract Price. If CONTRACTOR is or employs a Colorado Public Employees' Retirement Association ("PERA") retiree ("PERA Retiree"), as defined in C.R.S. § 24-51-1101(2), the total Contract Price shall reflect and include any required DISTRICT contributions for CONTRACTOR and CONTRACTOR shall supply all related relevant information including the number of days to be worked, multiplied by current PERA rate for CONTRACTOR and each PERA Retiree employed by CONTRACTOR.

3. **TERM**:

4. **INDEPENDENT CONTRACTOR**: The parties acknowledge that CONTRACTOR is an independent contractor and that nothing herein shall create the relationship of agent, employee, partner, joint venture or otherwise. Therefore, the officers, agents and employees of CONTRACTOR are not agents or employees of the DISTRICT. The DISTRICT will not be obligated to pay or provide any benefits to agents or employees of CONTRACTOR. Further, neither the DISTRICT nor any of its officers, agents, or members of the Board of Education shall be held liable or responsible for damages or injuries caused by any act or omission of CONTRACTOR or any of its employees. CONTRACTOR is not entitled to worker's compensation or unemployment benefits through the DISTRICT and is obligated to pay federal and state income tax on any monies earned pursuant to the contractual relationship.

SAMPLE

5. **STANDARDS:** CONTRACTOR shall perform all services in a professional, diligent, safe, and workmanlike manner, using its best skill and judgment pursuant to the highest standards of the profession for the services. CONTRACTOR represents that the work performed will be in conformance with all applicable laws, statutes, rules, regulations, ordinances, codes and orders of any governmental bodies, agencies, authorities and courts. If CONTRACTOR'S performance does not conform to these standards and the DISTRICT notifies CONTRACTOR of same, then CONTRACTOR agrees to immediately take all action necessary to remedy the nonconformance. CONTRACTOR'S failure to promptly remedy the nonconformance shall constitute a material breach justifying the DISTRICT to terminate this Agreement. Any costs incurred by CONTRACTOR to correct such nonconformance shall be at CONTRACTOR'S sole expense. The DISTRICT reserves the right to inspect all work before acceptance or final approval of the work.

6. **INSURANCE REQUIREMENTS:**

a. Coverage Requirements. Insurance certificates must show coverage of all insurance coverages required hereinbelow, must contain an endorsement naming the DISTRICT, the DISTRICT'S officers, board members and employees as additional insureds, and must be submitted to the DISTRICT before starting work. All coverages required herein shall be continuously maintained through the Term of this Agreement, including any warranty periods, to cover all liability, claims, demands, and other indemnity obligations assumed by CONTRACTOR in the Agreement. If the expiration date of the insurance certificate is prior to final completion, CONTRACTOR shall provide a new certificate of insurance prior to thirty (30) days from the expiration of the current policy. In case of any claims made policy, the necessary retroactive dates and extended reporting periods shall be procured to maintain such continuous coverage. CONTRACTOR shall require that all of its agents and subcontractor also comply with these insurance requirements. Any deductibles or self-insured retentions contained in any insurance policy shall be assumed by and at the sole risk of CONTRACTOR. Notwithstanding any other provision of this Agreement, failure on the part of CONTRACTOR to procure or maintain insurance policies providing the required coverages, conditions, and minimum limits shall constitute a material breach of this Agreement for which the DISTRICT may immediately terminate this Agreement or, at its sole discretion, the DISTRICT may procure or renew any such policy or any extended reporting period thereto and may pay any and all premiums in connection therewith, and all money so paid by the DISTRICT shall be promptly repaid by CONTRACTOR to the DISTRICT upon demand, or the DISTRICT may offset the cost of the premiums against any money due to CONTRACTOR from the DISTRICT. Any and all deductibles or self-insured retentions contained in any insurance policy shall be assumed by and at the sole risk of CONTRACTOR.

b. Types of Coverage. Unless otherwise agreed by the DISTRICT, the **t**ypes of insurance coverage required for the scope of services under this Agreement are as follows:

i. **Workers Compensation Insurance** shall be maintained by CONTRACTOR to comply with Colorado statutory provisions, including any required flow down, occupational disease provisions for all employees per statutory requirements, and employer's liability, which must have limits of at least: $100,000 per accident, $100,000 disease, each employee and $500,000 accident/disease policy limit.

SAMPLE

Such policy shall contain a waiver of subrogation in favor of the DISTRICT. CONTRACTOR shall also require each subcontractor to furnish workers' compensation insurance, including occupational disease provisions for all of the latter's employees, and to the extent not furnished, CONTRACTOR accepts full liability and responsibility for subcontractors' employees.

ii. **Professional Liability Insurance** shall be maintained by CONTRACTOR with minimum coverage limits for each occurrence or claim of $2,000,000, if professional services are provided under this Agreement.

iii. **Comprehensive General Liability Insurance** shall be maintained by CONTRACTOR to protect CONTRACTOR from all claims for bodily injury, including death and all claims for destruction of or damage to property, including loss of use therefrom, arising out of or in connection with any operations under this Agreement, whether such operations be by CONTRACTOR or by any subcontractor under it or anyone directly or indirectly employed by CONTRACTOR or by a subcontractor. All such insurance shall be written with minimum limits and coverages as specified below and shall be written on an occurrence form:

General Aggregate	$2,000,000
Products - Completed Operations Aggregate	$2,000,000
Each Occurrence	$1,000,000
Personal Injury	$1,000,000

This policy shall be primary insurance, and any insurance carried by the DISTRICT, its officers, or its employees, or carried by or provided through any insurance pool of the DISTRICT, shall be excess and not contributory insurance to that provided by CONTRACTOR.

iv. Comprehensive Automobile Liability Insurance shall be maintained by CONTRACTOR including coverage for liability arising out of any auto (including owner, hired, and non-owned autos), and including coverage for all power mobile equipment used by CONTRACTOR on the DISTRICT'S property, with a combined single limit of $1,000,000/person, $1,000,000/accident, and $1,000,000/property damage. Such insurance shall include a waiver of subrogation in favor of the DISTRICT. This policy shall be primary insurance, and any insurance carried by the DISTRICT, its officers, or its employees, or carried by or provided through any insurance pool of the DISTRICT, shall be excess and not contributory insurance to that provided by CONTRACTOR.

7. **BACKGROUND CHECKS**: CONTRACTOR warrants that it has complied with the provisions of Colo. Rev. Stat. §22-32-122(1.5), and that CONTRACTOR has caused to be performed a criminal background check for any person providing services under this Agreement, including any subcontractor or other agent of CONTRACTOR, if the person provides direct services to students,

SAMPLE

including but not limited to transportation, instruction, or food services. The background checks required by this paragraph shall be required only for those persons who have regular, but not incidental, contact with students at least once a month. The results of any such background check will be made available to the DISTRICT upon request.

8. **SAFETY, HEALTH, AND ACCIDENT REPORTS**: The safety and health of CONTRACTOR, CONTRACTOR'S employees and agents brought on the DISTRICT'S property, will be the sole responsibility of CONTRACTOR. CONTRACTOR shall take all necessary precautions to ensure the safety of all employees and other persons who may be affected by CONTRACTOR'S services. CONTRACTOR shall also take all necessary precautions to protect all property at the location where services will be provided as well as the property adjacent thereto. CONTRACTOR will comply with all local, state, and federal environmental, health and safety requirements, including those relating to the transportation, use and handling of hazardous material. CONTRACTOR will report all accidents, injury-inducing occurrences or property damage arising from the performance of services as soon as reasonably practical. The DISTRICT will have the right to receive, at its request, copies of any reports filed with CONTRACTOR'S insurer or others. CONTRACTOR'S employees and agents on the DISTRICT'S property will comply with all of the DISTRICT'S rules and regulations.

9. **RECORDS AND AUDITS:** CONTRACTOR will maintain complete and accurate records substantiating all charges incurred by the DISTRICT under this Agreement, in accordance with generally accepted accounting principles, for a period of twenty-four (24) months from the date of termination of the Agreement. The DISTRICT will have the right to inspect and audit CONTRACTOR'S records upon reasonable notice and to retain copies thereof.

10. **NO PECUNIARY INTEREST**: No member of the Board of Education, nor officer or employee of the DISTRICT shall have any pecuniary interest, direct or indirect, in the within agreement or the payment provided here under.

11. **CONFIDENTIALITY**: CONTRACTOR may use and disclose student Personally Identifiable Information ("PII") provided by the DISTRICT only for the purposes as described in Paragraph (1) and only in a manner that does not violate local or federal privacy regulations. For the purposes of this Paragraph (7), Student PII means any and all data or information collected, maintained, generated or inferred that alone or in combination personally identifies an individual student or the student's parent or family, in accordance with C.R.S. § 22-16-103(13) & 34 C.F.R. § 99.3. All data sharing, use, and storage will be performed in accordance with the requirements of the Family Educational Rights and Privacy Act of 1974 as amended, 20 U.S.C. § 1232g & 34 C.F.R. § 99 ("FERPA") and the Colorado Student Data Transparency and Security Act, C.R.S. § 22-16-101, et seq. CONTRACTOR shall not use or further disclose the student PII except as stated in and explicitly allowed by the DISTRICT and state and federal law. CONTRACTOR does not have permission to re-disclose student PII to a third party. CONTRACTOR shall notify the DISTRICT as soon as possible upon discovering the misuse or unauthorized release of student PII held by CONTRACTOR or one of its subcontractors, regardless of whether the misuse or unauthorized release is the result of a material breach of this Agreement. CONTRACTOR shall not sell student PII; use or share student PII for purposes of targeted advertising; or use student PII to create a personal profile of a student other than for accomplishing the purposes described in this Agreement.

SAMPLE

12. **CONFLICT OF INTEREST:** CONTRACTOR warrants and agrees that no official, officer or employee of the DISTRICT shall have any personal or beneficial interest whatsoever in the services or property described herein, and CONTRACTOR further agrees not to hire, pay, or contract for services of any official, officer or employee of the DISTRICT. A conflict of interest shall include transactions, activities or conduct that would affect the judgment, actions or work of CONTRACTOR by placing CONTRACTOR'S own interests, or the interest of any party with whom CONTRACTOR has a contractual arrangement, in conflict with those of DISTRICT.

13. **TAXES**: The DISTRICT, as a purchaser, is exempt from federal excise taxes and from state and local government sales and use taxes. The CONTRACTOR is hereby notified that when materials are purchased for benefit of the DISTRICT, such exemptions apply, except that in certain political subdivisions, the vendor may be required to pay sales or use taxes even though the ultimate product or service is provided to the DISTRICT. These taxes will not be reimbursed by the DISTRICT.

14. **NON-DISCRIMINATION**: All parties in performance of this Agreement shall comply with applicable provisions of law regarding non-discrimination. In performance of the within contract, all parties and their agents and employees shall fulfill and comply with all applicable laws regarding prohibition against discrimination based upon national origin, ethnicity, race, creed, color, age, sex, sexual orientation, gender identity, gender expression, marital status, religion, disability, or need for special education services.

15. **INDEMNIFICATION**: CONTRACTOR shall indemnify and hold the DISTRICT and its directors, employees, and agents harmless from and against all losses, damages, liabilities, deficiencies, actions, judgments, interest, award, penalties, fines, costs or expenses, including reasonable attorneys' fees, arising out of or resulting from any third-party claim against the DISTRICT or its board members, officers, directors, employees, representatives, and agents arising out of or resulting from CONTRACTOR'S negligent or intentional act or omission in the performance of its obligations set forth in this Agreement, or the negligent or intentional acts or omissions of CONTRACTOR'S employees, agents, or subcontractors.

16. **CONSEQUENTIAL DAMAGES:** Under no circumstances, including from breach or termination of this Agreement, shall the DISTRICT be liable to CONTRACTOR for any consequential, incidental, indirect, special, or punitive damages, even if such damages were reasonably foreseeable. CONTRACTOR expressly waives any right to claim or seek consequential damages against the DISTRICT, whether in contract, tort (including negligence), strict liability, or otherwise, and CONTRACTOR agrees that this limitation on damages is fair and reasonable and that it forms an essential basis of the bargain between the parties. The DISTRICT'S total liability for any and all claims, actions, or demands arising out of or related to this Agreement shall not exceed the Contract Price.

17. **ANNUAL APPROPRIATION:** In accordance with Article X, Section 20(4)(b) of the Colorado Constitution, this Agreement shall neither create nor be construed to create any multiple-fiscal year direct or indirect DISTRICT debt or other financial obligation whatsoever. The parties recognize that this Agreement is dependent upon the continuing availability and appropriation of funds

SAMPLE

beyond the term of the DISTRICT'S current fiscal period ending upon the next succeeding June 30, and that financial obligations of the DISTRICT payable after the current fiscal year are contingent upon funds for that purpose being appropriated, budgeted, and otherwise made available by the DISTRICT'S Board of Education in accordance with Colorado law.

18. **LIMITATIONS ON SCHOOL DISTRICT OBLIGATIONS:** Notwithstanding anything in this Agreement to the contrary, the DISTRICT'S obligations under this Agreement are subject to the DISTRICT'S rights and obligations under applicable DISTRICT policies, collective bargaining agreements, contracts, and applicable law.

19. **NO LIENS:** CONTRACTOR hereby represents and warrants that CONTRACTOR shall ensure that no liens, claims, or encumbrances of any kind shall be placed upon the DISTRICT'S property or assets in connection with the services rendered or materials provided under this Agreement. CONTRACTOR shall promptly satisfy and remove any lien or claim of lien. This clause shall survive termination or expiration of this Agreement.

20. **ACCESSIBILITY STANDARDS:** In accordance with applicable law, all public-facing and internal-facing technology, hardware, and software, including, but not limited to, websites, applications, kiosks, digital signage, documents, video, audio, and third-party tools, must comply with the Colorado Office of Information Technology (OIT) accessibility standards. CONTRACTOR warrants that its product meets or exceeds current OIT accessibility requirements (currently WCAG 2.1 AA). CONTRACTOR is liable for any statutory fine levied against the DISTRICT as a direct result of a deficiency of the product to meet OIT accessibility requirements. CONTRACTOR is not liable for any statutory fine levied against the DISTRICT as the result of the misuse or misapplication of the product by the DISTRICT'S users.

21. **PROHIBITED EMPLOYEES:** For the duration of this Agreement, CONTRACTOR shall not employ any person to perform the services for the DISTRICT who has been convicted of any felony or misdemeanor crime of unlawful behavior involving children.

22. **OPEN RECORDS LAW/CORA:** The Colorado Open Records Act, CRS § 24-72-100.1 *et seq.*, as amended from time to time, applies to the Agreement, CONTRACTOR'S performance, and the records and reports generated thereunder, to the extent not prohibited by federal law.

23. **ELECTRONIC SIGNATURES:** The parties consent to the use of electronic signatures on this Agreement and all exhibits, attachments, and addendums to this Agreement, and any amendments to any of the foregoing (collectively, the "Agreement Documents"). The Parties agree that any electronic signatures appearing on the Agreement Documents are the same as handwritten signatures for the purposes of validity, enforceability and admissibility, and that any electronically signed Agreement Document shall, for all purposes of the Agreement Documents and applicable law, be deemed to be "written" or "in writing", to have been executed, and to constitute an original written record when printed, and shall be fully admissible in any legal proceeding. For purposes hereof, "electronic signature" shall have the meaning set forth in the Uniform Electronic Transactions Act, C.R.S. § 24-71.3-101 *et seq.*, as the same may be amended from time to time.

SAMPLE

24. **AUTHORITY:** CONTRACTOR warrants and represents that it possesses the legal authority to enter into this Agreement and that it has taken all actions required by its procedures, by-laws, and/or applicable law to exercise that authority, and to lawfully authorize its undersigned signatory to execute this Agreement and to bind CONTRACTOR to its terms. The person(s) executing this Agreement on behalf of CONTRACTOR warrant(s) that such person(s) have full authorization to execute this Agreement.

25. **ATTORNEYS' FEES:** In the event that either party brings an action against the other to enforce a condition or covenant of this Agreement, the prevailing party in such action shall be entitled to recover the court costs and reasonable attorneys' fees in the judgment rendered in such action.

26. **COUNTERPARTS:** This Agreement may be executed in one or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

27. **NO WAIVER OF GOVERNMENTAL IMMUNITY ACT:** The DISTRICT retains all of its rights, privileges and immunities under the Colorado Governmental Immunity Act, C.R.S. § 24-10-101 *et seq.*

28. **ASSIGNMENT:** CONTRACTOR shall not assign or subcontract any of its rights or obligations hereunder without the express written consent of the DISTRICT.

29. **GOVERNING LAW/VENUE:** The Agreement shall be governed and construed in accordance with the laws of Colorado, excluding its choice of law rules. Any action or proceeding seeking any relief under or with respect to this Agreement shall be brought solely in the federal court located in Colorado or the state court located in Weld County, Colorado.

30. **NO THIRD-PARTY BENEFICIARIES**: Nothing in the Agreement shall be construed to give any rights or benefits to anyone other than the DISTRICT.

31. **COMPLIANCE WITH LAWS**: All of the work performed under this Agreement by CONTRACTOR shall comply with all applicable laws, rules, regulations and codes of the United States and the State of Colorado. CONTRACTOR shall also comply with all applicable ordinances, regulations, policies, and resolutions of the DISTRICT and shall commit no trespass on any public or private property in the performance of any of the work embraced by this Agreement.

32. **TERMINATION**: The DISTRICT may terminate this Agreement if CONTRACTOR breaches a material term of this Agreement and such breach is not cured within ten (10) days of CONTRACTOR'S receipt of written notice of such breach. Notwithstanding the foregoing, the DISTRICT may terminate this Agreement on not less than thirty (30) days written notice at any time, with or without cause.

33. **SEVERABILITY**: In the event any of the provisions of this Agreement are held to be unenforceable or invalid by any court of competent jurisdiction, the validity of the remaining

SAMPLE

provisions shall not be affected. Should either party fail to enforce a specific term of this Agreement it shall not be a waiver of a subsequent right of enforcement, nor shall it be deemed a modification or alteration of the terms and conditions contained herein.

34. **ENTIRE AGREEMENT**: This Agreement contains the entire agreement among the parties hereto with respect to its subject matter and supersedes all prior agreements, understandings, inducements or conditions, express or implied, oral or written, and any course of dealing or usage of the trade inconsistent with its terms. This Agreement may not be modified or amended except by a written amendment signed by both parties.

35. **DEBARMENT/SUSPENSION CERTIFICATION STATEMENT**: CONTRACTOR certifies that neither it nor its principals are presently debarred, suspended, proposed for debarment, declared ineligible or voluntarily excluded from participation in this transaction by any Federal, State, County, Municipal, or any other department or agency thereof. CONTRACTOR certifies that it will provide immediate written notice to the DISTRICT if at any time CONTRACTOR learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstance.

36. **HEADINGS**: The headings contained in this Agreement are for reference purposes only and shall not in any way affect the meaning or interpretation of this Agreement.

NOW, THEREFORE, the DISTRICT and the CONTRACTOR have executed this Agreement as of the above date.

WELD COUNTY SCHOOL DISTRICT 6

By: _____ **Date:** _____
Kent Henson, Assistant Superintendent of Operations

By: _____ **Date:** _____
Mandy Hydock, Director of Finance

CONTRACTOR

By: _____ **Date:** _____
Authorized Signature,

SAMPLE